

Court notes that the parties are actively litigating in Family Court, and Plaintiff is represented there by other counsel.

10. 9:00 AM CASE NUMBER: C25-02859
CASE NAME: CHARY MELINDO VS. ASSIGNMENT AMERICA, LLC

FILED BY: ASSIGNMENT AMERICA, LLC

TENTATIVE RULING:

The Court continues the hearing on this motion to October 1, 2026, at 9:00 a.m.

11. 9:00 AM CASE NUMBER: C25-02859
CASE NAME: CHARY MELINDO VS. ASSIGNMENT AMERICA, LLC
JOHN MUIR HEALTHS STATEMENT OF NON-OPPOSITION & JOINDER RE DEF ASSIGNMENT
AMERICA, LLCs MOTION TO COMPEL ARBITRATION
FILED BY: JOHN MUIR HEALTH

TENTATIVE RULING:

The Court continues the hearing on this motion to October 1, 2026, at 9:00 a.m.

12. 9:00 AM CASE NUMBER: C26-00608
CASE NAME: JESSICA PHILAVONG VS. LUIS GUZMAN
STRIKE PORTIONS OF PLAINTIFF'S COMPLAINT
FILED BY: GUZMAN, LUIS

TENTATIVE RULING:

The Motion to Strike Portions of the Complaint filed by Plaintiffs Jessica Philavong and Kelly Philavong, brought by Defendants Guzman Property LLC and Luis Guzman, is **denied**.

Plaintiffs shall prepare the order and serve notice of entry. Defendants shall have 10 days from service of written notice of entry of the order to answer the complaint.

Background

This is a landlord-tenant habitability case arising from Plaintiffs Jessica Philavong and Kelly Philavong's tenancy at 758 S 40th Street in Richmond (the Property). (See Plfs.' 8/13/26 Complaint, ¶¶ 1, 9.) Defendants are Guzman Property LLC and Luis Guzman who allegedly owned, managed, and controlled the Property. (*Id.*, ¶¶ 2-4, 10,)

Plaintiffs entered into a written lease for the Property on March 17, 2017, for \$1,580.00 per month. (Compl., ¶ 9). Plaintiffs allege that Defendants failed to maintain the property and allowed substantial, longstanding habitability defects to exist, including a broken stove and refrigerator, broken heater, insufficient trash receptacles, water leaks and intrusions, lack of separate utility meters, and general dilapidation. (*Id.*, ¶¶ 11-12, 14, 58.) Despite verbal and written repair requests, and an August 19, 2024 Notice of Violation and/or Notice to Abate issued by City of Richmond Code Enforcement, Defendants failed and refused to remediate the conditions, and instead continued to